

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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ALEJANDRO URRETIA,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ANGEL ANDUJAR, Shield No. 21051, Individually and in his Official Capacity, SGT. DANNY DIAZ, Shield No. 3970, Individually and in his Official Capacity, P.O. JAIME POLERMO, Shield No. 2729 Individually and in his Official Capacity, P.O. ALBERT CRAWFORD, Shield No. 17600 Individually and in his Official Capacity, P.O. JUAN MORA, Shield No. 11885 Individually and in his Official Capacity, P.O. HARRY BONHOMME, Shield No. 28127 Individually and in his Official Capacity, and P.O.'s "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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AMENDED COMPLAINT

10 CV 8361 (LBS)

JURY TRIAL DEMANDED

ECF CASE

Plaintiff ALEJANDRO URRETIA, by his attorneys, COHEN & FITCH LLP,
complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Southern District of New York under U.S.C. §1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff ALEJANDRO URRETIA is a Hispanic male and has been at all relevant times a resident of the City and State of New York.

7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

9. At all times hereinafter mentioned, the individually named defendants P.O. ANGEL ANDUJAR, SGT. DANNY DIAZ, P.O. JAIME POLERMO, P.O.

ALBERT CRAWFORD, P.O. JUAN MORA, P.O. HARRY BONHOMME, and P.O.'s "JOHN DOE" #1-#10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

13. On or about January 10, 2009 at approximately 3:45 p.m., plaintiff ALEJANDRO URRETIA was returning home to his apartment at 690 Gerard Avenue, in Bronx County in the City and State of New York.

14. At the aforesaid time and place plaintiff came upon several officers in the hallway outside of his apartment who informed him that there had been an attempted break-in at his home.

15. Thereafter, defendants inexplicably turned their attention to plaintiff, rushed him, handcuffed his hands behind his back, and searched him.

16. Despite the fact that plaintiff did not possess any controlled substance or marihuana, he was placed under arrest and charged with Criminal Possession of a Controlled Substance and Unlawful Possession of Marihuana.

17. At no time on January 10, 2009 did plaintiff ALEJANDRO URRETIA possess any controlled substance or marihuana.

18. At no time on January 10, 2009 did defendants possess information which would lead a reasonable officer to believe plaintiff possessed any controlled substance or marihuana or that he violated any law whatsoever.

19. Plaintiff was thereafter transported to a police precinct where he was subjected to an invasive strip search which did not reveal any contraband of any kind.

20. At no time on January 10, 2009 did defendants possess the particularized suspicion necessary to justify an invasive strip search.

21. With plaintiff secured at the precinct, defendant officers returned to his apartment and destroyed several valuable items, including approximately four thousand dollars (\$4,000.00) worth of collectibles from plaintiff's rare toy collection.

22. As a result of his unlawful arrest plaintiff ALEJANDRO URRETIA spent approximately twenty-four (24) hours in police custody.

23. While in police custody plaintiff ALEJANDRO URRETIA asked for medication that he takes to prevent seizures. Although plaintiff's mother had given said medicine to defendant officers, plaintiff's request was denied.

24. As a direct result of his unlawful arrest and prosecution, plaintiff ALEJANDRO URRETIA missed approximately ten (10) days of work.

25. In connection with his arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the District Attorney's Office.

26. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

27. Specifically, defendants falsely alleged that plaintiff was in possession of marijuana and cocaine.

28. As a result of his unlawful arrest, plaintiff ALEJANDRO URRETIA spent approximately twenty-one (21) months making numerous court appearances before the action against him was dismissed on or about September 30, 2010.

29. As a result of the foregoing, plaintiff ALEJANDRO URRETIA sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, loss of property, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "29" with the same force and effect as if fully set forth herein.

31. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

32. All of the aforementioned acts deprived plaintiff ALEJANDRO URRETIA of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

33. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

36. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “35” with the same force and effect as if fully set forth herein.

37. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

38. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “38” with the same force and effect as if fully set forth herein.

40. Defendants misrepresented and falsified evidence before the District Attorney.

41. Defendants did not make a complete and full statement of facts to the District Attorney.

42. Defendants withheld exculpatory evidence from the District Attorney.

43. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff ALEJANDRO URRETIA.

44. Defendants lacked probable cause to initiate criminal proceedings against plaintiff ALEJANDRO URRETIA.

45. Defendants acted with malice in initiating criminal proceedings against plaintiff ALEJANDRO URRETIA.

46. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff ALEJANDRO URRETIA.

47. Defendants lacked probable cause to continue criminal proceedings against plaintiff ALEJANDRO URRETIA.

48. Defendants acted with malice in continuing criminal proceedings against plaintiff ALEJANDRO URRETIA.

49. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

50. Specifically, defendants falsely alleged that plaintiff was in possession of marijuana and cocaine.

51. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff ALEJANDRO URRETIA's favor on or about September 30, 2010.

52. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**FOURTH CLAIM FOR RELIEF
UNLAWFUL AND UNREASONABLE
SEARCH UNDER 42 U.S.C. § 1983**

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

54. As a result of the forgoing plaintiff ALEJANDRO URETIA was subjected to an unreasonable and intrusive cavity search that shocks the conscience in violation of his due process rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

55. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally, improperly, and unreasonably searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**FIFTH CLAIM FOR RELIEF
ILLEGAL AND UNREASONABLE SEIZURE OF PLAINTIFF'S EFFECTS
UNDER THE FOURTH AMENDMENT UNDER 42 U.S.C. § 1983**

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "55" with the same force and effect as if fully set forth herein.

57. As a result of the aforesaid conduct by defendants, the effects of plaintiff ALEJANDRO URRETIA, specifically a significant portion of his rare and valuable toy collection, were illegally, unreasonably and permanently seized by the defendant officers when they destroyed several toys totaling approximately four thousand dollars (\$4,000.00) in value.

**SIXTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

58. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "57" as if the same were more fully set forth at length herein.

59. Defendants created false evidence against plaintiff ALEJANDRO URRETIA.

60. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

61. Defendants misled the prosecutors by creating false evidence against plaintiff ALEJANDRO URRETIA and thereafter providing false testimony throughout the criminal proceedings.

62. In creating false evidence against plaintiff ALEJANDRO URRETIA in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

63. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**SEVENTH CLAIM FOR RELIEF
DELIBERATE INDIFFERENCE TO PLAINTIFF'S
MEDICAL NEEDS UNDER 42 U.S.C. § 1983**

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "63" with the same force and effect as if fully set forth herein.

65. Defendants knew that plaintiff ALEJANDRO URRETIA required medication to prevent seizures.

66. Notwithstanding this knowledge, defendants refused to take steps to ensure that plaintiff ALEJANDRO URRETIA received the proper treatment.

67. In so doing, defendants exhibited a deliberate indifference to the health, safety, welfare and medical needs of plaintiff ALEJANDRO URRETIA, in violation of his constitutional rights as secured by the Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States.

EIGHT CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “67” with the same force and effect as if fully set forth herein.

69. The defendants had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence.

70. Defendants further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

71. As a result of the defendants’ failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence, plaintiff sustained, *inter alia*, physical and emotional injuries.

NINTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

72. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “71” with the same force and effect as if fully set forth herein.

73. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

74. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing;
- iii. conducting intrusive strip searches and body cavity inspections of arrested individuals regardless of particularized suspicion;
- iv. falsifying evidence to cover up police misconduct; and
- v. deliberate indifference to training, supervision, and retention of some or all of the individually named defendants in this action in spite of being on notice of the persistent and recurring Constitution violations perpetuated by some or all of the individually named defendants.

75. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City of New York:

- **Jose Colon v. City of New York et al**, United States District Court, Eastern District of New York, 09 CV 0008
- **Maximo Colon v. City of New York et al**, United States District Court, Eastern District of New York, 09 CV 0009
- **Angel Valentin v. City of New York et al**, United States District Court, Southern District of New York, 10 CV 5195
- **Nicole Scafuro v. City of New York et al**, United States District Court, Southern District of New York, 10 CV 9362

76. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

77. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

78. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

79. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

80. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff ALEJANDRO URRETIA's constitutional rights.

81. The acts complained of deprived plaintiff of his rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unlawful search;
- D. Not to have summary punishment imposed upon him; and
- E. To receive equal protection under the law.

82. As a result of the foregoing, plaintiff is entitled to compensatory damages in the sum of one million dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of one million dollars (\$1,000,000.00).

WHEREFORE, plaintiff ALEJANDRO URRETIA demands judgment in the sum of one million dollars (\$1,000,000.00) in compensatory damages, one million dollars (\$1,000,000.00) in punitive damages, plus attorney's fees, costs, and disbursements of this action.

Dated: New York, New York
February 24, 2011

BY: _____/S_____
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